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AS AMENDED

By: Grellner, Guthrie, Jett,
Bergstrom, and McIntosh

[higher education - information - tenure plans -
contract limitation - codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3260 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. By July 31, 2028, and by July 31 each year thereafter, each institution of higher education within The Oklahoma State System of Higher Education shall electronically submit to the Oklahoma State Regents for Higher Education the following information for the preceding academic year:

1. The number of full-time faculty employed by the institution;
2. The number of full-time faculty members who have been awarded tenure;

1 3. The number of part-time faculty including adjunct
2 instructors or employees; and

3 4. The number of graduate assistants employed by the
4 institution including the number of courses taught by each graduate
5 assistant.

6 B. By September 1, 2028, and by September 1 each year
7 thereafter, the State Regents shall electronically submit to the
8 Governor, the President Pro Tempore of the Senate, and the Speaker
9 of the House of Representatives the information submitted pursuant
10 to subsection A of this section.

11 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3213.1, as
12 amended by Section 2, Chapter 312, O.S.L. 2025 (70 O.S. Supp. 2025,
13 Section 3213.1), is amended to read as follows:

14 Section 3213.1. A. The Oklahoma State Regents for Higher
15 Education shall make educational program resources at institutions
16 in The Oklahoma State System of Higher Education available to the
17 people in the Ponca City area. ~~This~~ The program shall be known as
18 the University Center at Ponca City.

19 B. The State Regents shall draw upon the educational programs
20 of institutions best suited to provide the kind of educational
21 programs needed and shall, in pursuance of Article XIII-A of the
22 Oklahoma Constitution and appropriate statutes, set the standards of
23 education as they relate to the programs operated to assure that
24 credits earned by students will be fully accepted at institutions of

1 higher education to which the students may transfer the credit to
2 apply toward an educational study objective.

3 C. The State Regents may establish appropriate funds and
4 accounts, including a revolving fund, in the Office of Management
5 and Enterprise Services for servicing the fiscal operations of the
6 University Center at Ponca City. The funds and accounts shall be
7 subject to the direct supervision, management, and control of the
8 board of trustees created by subsection D of this section. The
9 people locally shall provide suitable physical plant accommodations
10 for the University Center at Ponca City.

11 D. There is hereby created a board of nine (9) trustees to be
12 appointed by the Governor by and with the consent of the Senate to
13 serve as the administrative agency for the University Center at
14 Ponca City. The board shall be a body corporate and shall adopt and
15 use an official seal. The board ~~so created~~ shall have the authority
16 to submit a budget annually to the Oklahoma State Regents for Higher
17 Education, administer monies budgeted by the State Regents, provide
18 educational facilities, recommend courses and programs to be offered
19 by participating institutions, select a chief executive officer
20 whose duties include the general coordination of approved programs
21 and services, and the selection of other appropriate nonteaching
22 personnel. The board of trustees is authorized to expend all monies
23 allocated to the University Center at Ponca City as may be necessary
24 to perform the duties and responsibilities imposed upon the board by

1 this section. For purposes of acquiring and taking title to real
2 and personal property from sources other than state appropriations,
3 the board is authorized to enter into contracts and to adopt rules
4 and regulations pertaining to such actions. The initial nine (9)
5 members shall serve their terms for the period to which originally
6 appointed, in numbered positions having dates of expiration
7 identical to the dates of expiration of the original appointments:

8 Position No. 1. The term of office of one member shall expire
9 on June 30, 2013, and each nine (9) years thereafter;

10 Position No. 2. The term of office of one member shall expire
11 on June 30, 2014, and each nine (9) years thereafter;

12 Position No. 3. The term of office of one member shall expire
13 on June 30, 2015, and each nine (9) years thereafter;

14 Position No. 4. The term of office of one member shall expire
15 on June 30, 2016, and each nine (9) years thereafter;

16 Position No. 5. The term of office of one member shall expire
17 on June 30, 2017, and each nine (9) years thereafter;

18 Position No. 6. The term of office of one member shall expire
19 on June 30, 2018, and each nine (9) years thereafter;

20 Position No. 7. The term of office of one member shall expire
21 on June 30, 2019, and each nine (9) years thereafter;

22 Position No. 8. The term of office of one member shall expire
23 on June 30, 2020, and each nine (9) years thereafter; and
24

1 Position No. 9. The term of office of one member shall expire
2 on June 30, 2021, and each nine (9) years thereafter.

3 The board shall organize and elect a chair, ~~vice-chair~~ vice
4 chair, and secretary annually.

5 E. The board of trustees may, except as provided for in
6 subsection F of this section, establish and maintain plans for
7 tenure and retirement of its employees and for payment of deferred
8 compensation of employees and may provide hospital and medical
9 benefits, accident, health, and life insurance and annuity contracts
10 for employees and pay for all or part of the cost with funds
11 available for payment of its operating expenses.

12 F. Beginning January 1, 2027, the board of trustees shall not
13 have the authority to establish and maintain plans for tenure of
14 employees hired January 1, 2027, and thereafter. The contract of
15 any employee hired on January 1, 2027, and thereafter shall not
16 exceed five (5) years.

17 G. The board may establish with the State Treasurer any
18 accounts as are necessary to operate retirement, deferred
19 compensation, or benefits plans for its employees. The accounts
20 shall be revolving funds not subject to fiscal year limitations.
21 Funds deposited in the accounts may be invested in any of the types
22 of instruments in which the State Treasurer is authorized by law to
23 invest.

24

SECTION 3. AMENDATORY 70 O.S. 2021, Section 3305, is amended to read as follows:

Section 3305. The Board of Regents of the University of Oklahoma shall have the supervision, management, and control of the University of Oklahoma and all its integral parts, of Cameron University, and of Rogers State University and shall have the following additional powers and duties:

(a) Adopt such rules and regulations as it deems necessary to govern the University of Oklahoma, Cameron University, and Rogers State University.

(b) Employ and fix the compensation and duties of such personnel as it deems necessary, including architects, attorneys, engineers, and other professional and technical persons, for its operation and for the operation of the University of Oklahoma, Cameron University, and Rogers State University. Any of such personnel having custody of public funds or other public property may be required to furnish corporate surety bonds in such amounts as may be deemed necessary by the Board, payable to ~~the State of Oklahoma~~ this state and conditioned upon a faithful accounting of all such funds and property.

(c) Enter into contracts, purchase supplies, materials, and equipment, and incur such other expenses as may be necessary to make any of its powers effective.

1 (d) Authorize officials of the University of Oklahoma, Cameron
2 University, and Rogers State University to act in its behalf in the
3 making of contracts~~7~~ or in carrying out the powers conferred upon
4 it.

5 (e) Receive and make disposition of monies, grants, and
6 property from federal agencies~~7~~ and administer the same in
7 accordance with federal requirements.

8 (f) Accept gifts of real and personal property, monies, and
9 other things~~7~~ and use or dispose of the same in accordance with the
10 directions of the donors or grantors thereof.

11 (g) Direct the disposition of all monies appropriated by the
12 Legislature or by the Congress or derived from the sale of bonds or
13 received from any other source by the University of Oklahoma,
14 Cameron University, and Rogers State University.

15 (h) Acquire and take title to real and personal property in its
16 name, on behalf of the University of Oklahoma or any agency thereof,
17 on behalf of Cameron University, and on behalf of Rogers State
18 University and convey, exchange, or dispose of, or otherwise manage
19 or control, such property in the interest of the University of
20 Oklahoma or agency thereof, Cameron University, and Rogers State
21 University~~7~~ including the granting of leases, permits, easements,
22 and licenses over or upon such real property. The Board shall have
23 the power to institute legal action in the name of the Board before
24 any court having jurisdiction of such actions. The Board shall have

1 the custody and control of abstracts of title and instruments
2 affecting the ownership of or title to real property belonging to
3 the Board, and being held by the Board on behalf of the University
4 of Oklahoma or any agency thereof, on behalf of Cameron University,
5 and on behalf of Rogers State University.

6 (i) Have supervision and charge of the construction of all
7 buildings at the University of Oklahoma, Cameron University, and
8 Rogers State University.

9 (j) Determine the need for and cause to be constructed,
10 dormitories and other buildings, on a self-liquidating basis, at the
11 University of Oklahoma or any branch or facility thereof, at Cameron
12 University, and at Rogers State University.

13 (k) Establish and maintain plans for tenure, except as provided
14 for in subsection (o) of this section, and establish and maintain
15 plans for retirement of employees of the Board and of the University
16 of Oklahoma, Cameron University, and Rogers State University and for
17 payment of deferred compensation of such employees; and provide
18 hospital and medical benefits, accident, health, and life insurance,
19 and annuity contracts, for such employees and their dependents. The
20 Board may pay for all or a part of the cost thereof for employees,
21 with funds available for the operation of the institution. Amounts
22 payable by an employee for such insurance or annuity contracts may,
23 with the consent of the employee, be deducted from his or her
24 salary.

1 (1) Audit all accounts against the funds appropriated for the
2 use and maintenance of the University of Oklahoma, Cameron
3 University, and Rogers State University and the State Treasurer
4 shall issue ~~his~~ a warrant for the amount of all accounts, including
5 salaries and expenses of ~~said~~ the Board, which shall have been
6 audited and allowed by the Board of Regents and attested by the
7 President and Secretary of the University of Oklahoma, the President
8 of Cameron University, and the President of Rogers State University.

9 (m) Provide penalties and forfeitures by way of damages and
10 otherwise for the violation of rules and regulations of the Board,
11 which may be sued for and collected in the name of the Board before
12 any court having jurisdiction of such actions.

13 (n) Issue, on behalf of the University of Oklahoma, special and
14 limited obligations for purposes of such capital projects as the
15 Regents may deem to be proper.

16 (o) Beginning January 1, 2027, the Board shall not have the
17 authority to establish and maintain plans for tenure of employees
18 hired January 1, 2027, and thereafter. The contract of any employee
19 hired on January 1, 2027, and thereafter shall not exceed five (5)
20 years.

21

(p) Do all things necessary and convenient to carry out the
22 powers expressly granted to it by the Constitution and the laws of
23 the state, or to make the University of Oklahoma, Cameron
24 University, and Rogers State University effective for the purposes

1 for which they are maintained and operated and the enumeration
2 herein of certain powers and immunities of the Board of Regents of
3 the University shall not be construed as in derogation or as a
4 limitation of the powers and immunities properly belonging to the
5 Board in the government of the University of Oklahoma, Cameron
6 University, and Rogers State University by virtue of Section 8,
7 Article XIII of the Constitution.

8 SECTION 4. AMENDATORY 70 O.S. 2021, Section 3407.2, is
9 amended to read as follows:

10 Section 3407.2. A. The Board of Regents of Murray State
11 College shall consist of seven (7) members, including one member who
12 is a resident of Ardmore, Oklahoma, appointed by the Governor, by
13 and with the advice and consent of the Senate. The regular term of
14 each member shall be seven (7) years, except that the initial
15 appointments shall be for lesser terms so that the term of only one
16 member shall expire each year.

17 B. The Board of Regents of Murray State College shall be a body
18 corporate, and shall adopt and use an official seal. It shall
19 annually elect a chair, a ~~vice-chair~~ vice chair, and a secretary,
20 each of whom shall serve for a term of one (1) fiscal year and until
21 his or her successor is elected and qualified, and who shall perform
22 such duties as the Board directs. The Board shall adopt rules and
23 regulations as it deems necessary for the governing of the Board and
24 the discharge of its duties, and shall cause to be kept the minutes

1 of all meetings and transactions considered at each meeting~~7~~ in a
2 suitable book to be obtained and kept for such purpose. The Board
3 of Regents of Murray State College shall be the governing board of
4 the College and shall have the supervision and management thereof
5 and shall have the same powers and duties as governing boards of
6 other institutions in The Oklahoma State System of Higher Education~~7~~
7 and may do all things necessary or convenient to make the College
8 effective for the purpose for which it is operated.

9 C. Beginning January 1, 2027, the Board of Regents shall not
10 have the authority to establish and maintain plans for tenure of
11 employees hired January 1, 2027, and thereafter. The contract of
12 any employee hired on January 1, 2027, and thereafter shall not
13 exceed five (5) years.

14 SECTION 5. AMENDATORY 70 O.S. 2021, Section 3412, is
15 amended to read as follows:

16 Section 3412. The Board of Regents for the Oklahoma
17 Agricultural and Mechanical Colleges shall have the supervision,
18 management~~7~~ and control of Oklahoma State University, Panhandle
19 State University, Langston University, Connors State College, and
20 Northeastern Oklahoma Agricultural and Mechanical College~~7~~ and shall
21 have the following additional powers and duties:

22 1. Adopt such rules and regulations as it deems necessary to
23 govern each of the institutions under its jurisdiction;
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1 2. Employ and fix the compensation and duties of such personnel
2 as it deems necessary, including architects, attorneys, engineers,
3 and other professional and technical persons deemed necessary by the
4 Board, for its operation and for the operation of the institutions
5 under its jurisdiction. Any ~~of~~ such personnel having custody of
6 public funds or other public property may be required to furnish
7 corporate surety bonds in such amounts as may be deemed necessary by
8 the Board, payable to ~~the State of Oklahoma~~ this state and
9 conditioned upon a faithful accounting of all such funds and
10 property;

11 3. Enter into contracts, purchase supplies, materials, and
12 equipment, and incur such other expenses as may be necessary to make
13 any of its powers effective;

14 4. Authorize officials at the several institutions under its
15 jurisdiction to act in its behalf in the making of contracts, or in
16 carrying out the powers conferred upon it;

17 5. Receive and make disposition of monies, grants, and property
18 from federal agencies, and administer the same in accordance with
19 federal requirements;

20 6. Accept gifts of real and personal property, money, and other
21 things, and use or dispose of the same in accordance with the
22 directions of the donors or grantors thereof;

23 7. Direct the disposition of all monies appropriated by the
24 Legislature or by the Congress or derived from the sale of bonds or

1 received from any other source by institutions under its
2 jurisdiction;

3 8. Acquire and take title to real and personal property in its
4 name, on behalf of any of the institutions under its jurisdiction,
5 and convey, exchange, or dispose of, or otherwise manage or control,
6 such property in the interest of such institutions, including the
7 granting of leases, permits, easements, and licenses over or upon
8 any such real property. The Board shall have the power to institute
9 any legal action in the name of the Board before any court having
10 jurisdiction of such actions. The Board shall have the custody and
11 control of abstracts of title and instruments affecting the
12 ownership of or title to real property belonging to the Board, and
13 being held by the Board on behalf of a particular state educational
14 institution;

15 9. Have supervision and charge of the construction of all
16 buildings at the institutions under its jurisdiction;

17 10. Determine the need for and cause to be constructed,
18 dormitories and other buildings, on a self-liquidating basis, at any
19 institution under its jurisdiction;

20 11. Establish and maintain plans for tenure, except as provided
21 for in paragraph 12 of this section, and establish and maintain
22 plans for retirement of employees of the Board and of the
23 institutions under its jurisdiction, and for payment of deferred
24 compensation of such employees, and provide hospital and medical

1 benefits, accident, health, and life insurance, and annuity
2 contracts, for such employees and their dependents. The Board may
3 pay for all or a part of the cost for employees thereof with funds
4 available for the operation of the institution. Amounts payable by
5 an employee for such insurance or annuity contracts may, with the
6 consent of the employee, be deducted from the employee's salary;

7 12. Beginning January 1, 2027, the Board shall not have the
8 authority to establish and maintain plans for tenure of employees
9 hired January 1, 2027, and thereafter. The contract of any employee
10 hired on January 1, 2027, and thereafter shall not exceed five (5)
11 years;

12 13. The Board shall cause a complete inventory to be made of
13 all properties belonging to each of the agricultural colleges or
14 universities within ~~the State of Oklahoma~~ this state before the last
15 Monday in December, next preceding each biennial session of the
16 ~~State~~ Legislature, and accompanying the inventories shall be a
17 financial statement showing in detail the condition of all funds
18 appropriated for the use of the agricultural colleges and
19 experimental stations, also the money expended and the purposes for
20 which the same were expended and the condition of the institution;
21 and, the results of experiments carried on, together with their
22 recommendations concerning remedial legislation or rules for the
23 betterment of the institution;

1 ~~13.~~ 14. The Board shall audit all accounts against the funds
2 appropriated for the use and maintenance of ~~the~~ Oklahoma State
3 University and the other state agricultural colleges, including
4 experimental stations, and the State Treasurer shall issue a warrant
5 for the amount of all accounts, including salaries and expenses;

6 ~~14.~~ 15. Provide penalties and forfeitures by way of damages and
7 otherwise for the violation of rules of the Board, which may be sued
8 for and collected in the name of the Board before any court having
9 jurisdiction of such actions;

10 ~~15.~~ 16. The Legislature further recognizes and confirms, that
11 ~~the~~ Oklahoma State University is an institution corporate under the
12 ~~constitution~~ Oklahoma Constitution and the statutes of ~~Oklahoma~~ this
13 state with full power and authority, acting through its
14 constitutional Board of Regents, to do all things necessary or
15 convenient to accomplish the corporate objects of the institution,
16 and the institution, acting through its constitutional Board of
17 Regents, is hereby recognized to be such public corporation and to
18 have such powers; and

19 ~~16.~~ 17. Issue, on behalf of Oklahoma State University, special
20 and limited obligations for purposes of such capital projects as the
21 Regents may deem to be proper.

22 Without limiting the generality of the foregoing, the powers of
23 the ~~board of regents~~ Board of Regents to control and use monies
24 accruing to the institutions under ~~their~~ its jurisdiction and

1 control, from nontax sources, including institutional earnings, and
2 proceeds of sales of surplus properties heretofore authorized to be
3 sold, and revenues derived by way of bonuses and rentals from oil
4 and gas leases, for any lawful institutional purpose, is hereby
5 specifically confirmed.

6 The enumeration herein of certain powers and immunities of the
7 Board of Regents for the Oklahoma Agricultural and Mechanical
8 Colleges shall not be construed as in derogation or as a limitation
9 of other powers and immunities properly belonging to the Board by
10 virtue of any provisions of the Oklahoma Constitution ~~of Oklahoma~~ or
11 of any provision of law. The Board, is hereby expressly granted
12 every power necessary or convenient to make institutions under its
13 jurisdiction effective for the purposes for which they were created
14 and are maintained and operated.

15 Nothing in this section shall be construed as in derogation of
16 the constitutional powers and responsibilities of the Board of
17 Regents for the Oklahoma Agricultural and Mechanical Colleges,
18 acting as the Board of Regents for Connors State College,
19 Northeastern Oklahoma Agricultural and Mechanical College, Panhandle
20 State University, and Langston University.

21 SECTION 6. AMENDATORY 70 O.S. 2021, Section 3510, as
22 amended by Section 1, Chapter 186, O.S.L. 2023 (70 O.S. Supp. 2025,
23 Section 3510), is amended to read as follows:

24

1 Section 3510. The Board of Regents of Oklahoma Colleges, also
2 known as the Regional University System of Oklahoma (RUSO) pursuant
3 to Section 3507.1 of this title, shall have the supervision,
4 management, and control of the University of Central Oklahoma, East
5 Central University, Northeastern State University, Northwestern
6 Oklahoma State University, Southeastern Oklahoma State University,
7 and Southwestern Oklahoma State University~~+~~, and it shall have the
8 following additional powers and duties:

9 (a) Adopt such rules and regulations as it deems necessary to
10 govern each of the institutions under its jurisdiction.

11 (b) Employ and fix the compensation and duties of such
12 personnel as it deems necessary including architects, attorneys,
13 engineers, and other professional and technical persons for its
14 operation and for the operation of the institutions under its
15 jurisdiction. Any of such personnel having custody of public funds
16 or other public property may be required to furnish corporate surety
17 bonds in such amounts as may be deemed necessary by the Board,
18 payable to this state and conditioned upon a faithful accounting of
19 all such funds and property.

20 (c) Enter into contracts, purchase supplies, materials~~,~~, and
21 equipment, and incur such other expenses as may be necessary to make
22 any of its powers effective.
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1 (d) Authorize officials at the several institutions under its
2 jurisdiction to act in its behalf in the making of contracts, or in
3 carrying out the powers conferred upon it.

4 (e) Receive and make disposition of monies, grants, and
5 property from federal agencies, and administer the same in
6 accordance with federal requirements.

7 (f) Accept gifts of real and personal property, money, and
8 other things, and use or dispose of the same in accordance with the
9 directions of the donors or grantors thereof.

10 (g) Direct the disposition of all monies appropriated by the
11 Legislature or by the Congress or derived from the sale of bonds or
12 received from any other source by the institutions under its
13 jurisdiction.

14 (h) Acquire and take title to real and personal property in its
15 name, on behalf of any of the institutions under its jurisdiction,
16 and convey, exchange, or dispose of, or otherwise manage or control,
17 such property in the interest of such institutions including the
18 granting of leases, permits, easements, and licenses over or upon
19 any such real property. The Board shall have the power to institute
20 any legal action in the name of the Board before any court having
21 jurisdiction of such actions. The Board shall have custody of
22 abstracts of title and instruments affecting the ownership of or
23 title to real property acquired for or belonging to such
24 institutions.

1 (i) Have supervision and charge of the construction of all
2 buildings at institutions under its jurisdiction.

3 (j) Determine the need for and cause to be constructed
4 dormitories and other buildings, on a self-liquidating basis, at any
5 institution under its jurisdiction.

6 (k) Establish and maintain plans for tenure, except as provided
7 for in subsection (l) of this section, and establish and maintain
8 plans for retirement of employees of the Board and of the
9 institutions under its jurisdiction, and for payment of deferred
10 compensation of such employees, and provide hospital and medical
11 benefits, accident, health, and life insurance, and annuity
12 contracts, for such employees and their dependents. The Board may
13 pay for all or a part of the cost thereof for employees, with funds
14 available for the operation of the institution. Amounts payable by
15 an employee for such insurance or annuity contracts may, with the
16 consent of the employee, be deducted from his or her salary.

17 (l) Beginning January 1, 2027, the Board shall not have the
18 authority to establish and maintain plans for tenure of employees
19 hired January 1, 2027, and thereafter. The contract of any employee
20 hired on January 1, 2027, and thereafter shall not exceed five (5)
21 years.

22 (m) Maintain an inventory of all property belonging to each of
23 the institutions under its jurisdiction.

1 ~~(m)~~ (n) Audit all accounts against the funds allocated to the
2 institutions under its jurisdiction.

3 ~~(n)~~ (o) Provide penalties and forfeitures by way of damages and
4 otherwise for the violation of rules and regulations of the Board,
5 which may be sued for and collected in the name of the Board before
6 any court having jurisdiction of such actions.

7 ~~(o)~~ (p) Do all things necessary or convenient to carry out the
8 powers expressly granted to it by Article XIII-B of the Oklahoma
9 Constitution and the ~~Statutes of Oklahoma~~ statutes of this state, or
10 to make institutions under its jurisdiction effective for the
11 purposes for which they are maintained or operated.

12 ~~(p)~~ (q) Issue, on behalf of the institutions supervised and
13 managed by RUSO, special and limited obligations for purposes of
14 such capital projects as RUSO may deem proper.

15 SECTION 7. AMENDATORY 70 O.S. 2021, Section 3606, is
16 amended to read as follows:

17 Section 3606. The Board of Regents of the Oklahoma College of
18 Liberal Arts shall have the supervision, management, and control of
19 the Oklahoma College of Liberal Arts~~+~~, and it shall have the
20 following additional powers and duties:

21 (a) Adopt such rules and regulations as it deems necessary to
22 govern the Oklahoma College of Liberal Arts.

23 (b) Employ and fix the compensation and duties of such
24 personnel as it deems necessary~~7~~ including architects, attorneys,

1 engineers, and other professional and technical persons for its
2 operation and for the operation of the Oklahoma College of Liberal
3 Arts. Any ~~of~~ such personnel having custody of public funds or other
4 public property may be required to furnish corporate surety bonds in
5 such amounts as may be deemed necessary by the Board, payable to ~~the~~
6 ~~State of Oklahoma~~ this state and conditioned upon a faithful
7 accounting of all such funds and property.

8 (c) Enter into contracts, purchase supplies, materials, and
9 equipment, and incur such other expenses as may be necessary to make
10 any of its powers effective.

11 (d) Authorize officials at the Oklahoma College of Liberal Arts
12 to act in its behalf in the making of contracts, or in carrying out
13 the powers conferred upon it.

14 (e) Receive and make disposition of monies, grants, and
15 property from federal agencies, and administer the same in
16 accordance with federal requirements.

17 (f) Accept gifts of real and personal property, money, and
18 other things, and use or dispose of the same in accordance with the
19 directions of the donors or grantors thereof.

20 (g) Direct the disposition of all monies appropriated by the
21 Legislature or by the Congress or derived from the sale of bonds or
22 received from any other source by the Oklahoma College of Liberal
23 Arts.

1 (h) Acquire and take title to real and personal property in its
2 name, on behalf of the Oklahoma College of Liberal Arts, and convey,
3 exchange, or dispose of, or otherwise manage or control, such
4 property in the interest of such institution, including the granting
5 of leases, permits, easements, and licenses over or upon any such
6 real property. The Board shall have the power to institute any
7 legal action in the name of the Board before any court having
8 jurisdiction of such actions. The Board shall have custody of
9 abstracts of title and instruments affecting the ownership of or
10 title to real property belonging to the Oklahoma College of Liberal
11 Arts.

12 (i) Have supervision and charge of the construction of all
13 buildings at the Oklahoma College of Liberal Arts.

14 (j) Determine the need for and cause to be constructed
15 dormitories and other buildings, on a self-liquidating basis, at the
16 Oklahoma College of Liberal Arts.

17 (k) Establish and maintain plans for tenure, except as provided
18 for in subsection (l) of this section, and establish and maintain
19 plans for retirement of employees at the Oklahoma College of Liberal
20 Arts, and for payment of deferred compensation of such employees,
21 and provide hospital and medical benefits, accident, health, and
22 life insurance, and annuity contracts, for such employees and their
23 dependents. The Board may pay for all or a part of the cost thereof
24 for employees, with funds available for the operation of the

1 institution. Amounts payable by an employee for such insurance or
2 annuity contracts may with the consent of the employee be deducted
3 from his or her salary.

4 (l) Beginning January 1, 2027, the Board shall not have the
5 authority to establish and maintain plans for tenure of employees
6 hired January 1, 2027, and thereafter. The contract of any employee
7 hired on January 1, 2027, and thereafter shall not exceed five (5)
8 years.

9 (m) Maintain an inventory of all property belonging to the
10 Oklahoma College of Liberal Arts.

11 ~~(m)~~ (n) Audit all accounts against the funds allocated to the
12 Oklahoma College of Liberal Arts.

13 ~~(n)~~ (o) Provide penalties and forfeitures by way of damages and
14 otherwise for the violation of rules and regulations of the Board,
15 which may be sued for and collected in the name of the Board before
16 any court having jurisdiction of such actions.

17 ~~(o)~~ (p) Do all things necessary or convenient to carry out the
18 powers expressly granted to it, or to make the Oklahoma College of
19 Liberal Arts effective for the purposes for which it is maintained
20 or operated.

21 SECTION 8. AMENDATORY 70 O.S. 2021, Section 3706, is
22 amended to read as follows:

23 Section 3706. The Board of Regents of the Northern Oklahoma
24 College shall have the supervision, management, and control of the

1 Northern Oklahoma College~~+~~l and it shall have the following
2 additional powers and duties:

3 (a) Adopt such rules and regulations as it deems necessary to
4 govern the Northern Oklahoma College.

5 (b) Employ and fix the compensation and duties of such
6 personnel as it deems necessary~~r~~ including architects, attorneys,
7 engineers~~,~~l and other professional and technical persons for its
8 operation and for the operation of Northern Oklahoma College. Any
9 of such personnel having custody of public funds or other public
10 property may be required to furnish corporate surety bonds in such
11 amounts as may be deemed necessary by the Board, payable to ~~the~~
12 ~~State of Oklahoma~~ this state and conditioned upon a faithful
13 accounting of all such funds and property.

14 (c) Enter into contracts, purchase supplies, materials~~,~~l and
15 equipment, and incur such other expenses as may be necessary to make
16 any of its powers effective.

17 (d) Authorize officials at the Northern Oklahoma College to act
18 in its behalf in the making of contracts~~r~~ or in carrying out the
19 powers conferred upon it.

20 (e) Receive and make disposition of monies, grants~~,~~l and
21 property from federal agencies~~r~~ and administer the same in
22 accordance with Federal requirements.

23

24

1 (f) Accept gifts of real and personal property, money, and
2 other things, and use or dispose of the same in accordance with the
3 directions of the donors or grantors thereof.

4 (g) Direct the disposition of all monies appropriated by the
5 Legislature or by the Congress or derived from the sale of bonds or
6 received from any other source by Northern Oklahoma College.

7 (h) Acquire and take title to real and personal property in its
8 name, on behalf of the Northern Oklahoma College, and convey,
9 exchange, or dispose of, or otherwise manage or control, such
10 property in the interest of such institution, including the granting
11 of leases, permits, easements, and licenses over or upon any such
12 real property. The Board shall have the power to institute any
13 legal action in the name of the Board before any court having
14 jurisdiction of such actions. The Board shall have custody of
15 abstracts of title and instruments affecting the ownership of or
16 title to real property belonging to the Northern Oklahoma College.

17 (i) Have supervision and charge of the construction of all
18 buildings at Northern Oklahoma College.

19 (j) Determine the need for and cause to be constructed
20 dormitories and other buildings, on a self-liquidating basis, at the
21 Northern Oklahoma College.

22 (k) Establish and maintain plans for tenure, except as provided
23 for in subsection (l) of this section, and establish and maintain
24 plans for retirement of employees at the Northern Oklahoma College.

1 and for payment of deferred compensation of such employees~~+~~ and
2 provide hospital and medical benefits, accident, health, and life
3 insurance, and annuity contracts, for such employees and their
4 dependents. The Board may pay for all or a part of the cost thereof
5 for employees with funds available for the operation of the
6 institution. Amounts payable by an employee for such insurance or
7 annuity contracts may, with the consent of the employee be deducted
8 from his or her salary.

9 (l) Beginning January 1, 2027, the Board shall not have the
10 authority to establish and maintain plans for tenure of employees
11 hired January 1, 2027, and thereafter. The contract of any employee
12 hired on January 1, 2027, and thereafter shall not exceed five (5)
13 years.

14 (m) Maintain an inventory of all property belonging to the
15 Northern Oklahoma College.

16 ~~(m)~~ (n) Audit all accounts against the funds allocated to
17 Northern Oklahoma College.

18 ~~(n)~~ (o) Provide penalties and forfeitures by way of damages and
19 otherwise for the violation of rules and regulations of the Board,
20 which may be sued for and collected in the name of the Board before
21 any court having jurisdiction of such actions.

22 ~~(o)~~ (p) Do all things necessary or convenient to carry out the
23 powers expressly granted to it, or to make the Northern Oklahoma
24

1 College effective for the purposes for which it is maintained or
2 operated.

3 SECTION 9. AMENDATORY 70 O.S. 2021, Section 4413, is
4 amended to read as follows:

5 Section 4413. A. The Oklahoma State Regents for Higher
6 Education shall have authority to establish a two-year community
7 college in Tulsa County to serve Tulsa County and surrounding area,
8 if provision is made locally for the donation, ~~to the State of~~
9 ~~Oklahoma,~~ this state of a suitable site for the college, which shall
10 be known as the Tulsa Community College and shall be an integral
11 part of The Oklahoma State System of Higher Education, ~~and~~ and shall be
12 entitled to the same privileges and be subject to the same laws as
13 other member institutions ~~of such State System.~~

14 B. After the Oklahoma State Regents for Higher Education have
15 acted to establish the Tulsa Community College, there shall be
16 created the Board of Regents of the Tulsa Community College, which
17 shall consist of seven (7) members, to be appointed by the Governor,
18 by and with the advice and consent of the Senate. Four members of
19 said Board shall be residents of Tulsa County. Appointments shall
20 be to numbered positions on the Board, and the terms of members of
21 the Board shall be as follows:

22 Position No. 1. The term of office of one member shall expire
23 on the 30th day of June, 1969, and each seven (7) years thereafter.

24

1 Position No. 2. The term of office of one member shall expire
2 on the 30th day of June, 1970, and each seven (7) years thereafter.

3 Position No. 3. The term of office of one member shall expire
4 on the 30th day of June, 1971, and each seven (7) years thereafter.

5 Position No. 4. The term of office of one member shall expire
6 on the 30th day of June, 1972, and each seven (7) years thereafter.

7 Position No. 5. The term of office of one member shall expire
8 on the 30th day of June, 1973, and each seven (7) years thereafter.

9 Position No. 6. The term of office of one member shall expire
10 on the 30th day of June, 1974, and each seven (7) years thereafter.

11 Position No. 7. The term of office of one member shall expire
12 on the 30th day of June, 1975, and each seven (7) years thereafter.

13 Vacancies in positions on the Board shall be filled by the
14 Governor for the unexpired term, by and with the advice and consent
15 of the Senate. No member of the Board shall be employed upon any
16 work to be performed in connection with the Tulsa Community College,
17 nor shall any member of ~~said~~ the Board enter into any contract or
18 business transaction involving a financial consideration with the
19 Tulsa Community College. Each member of the Board of Regents of the
20 Tulsa Community College shall take and subscribe to the oaths
21 required of state officials generally. Each member of the Board
22 shall be allowed necessary travel expenses, as may be approved by
23 the Board, pursuant to the State Travel Reimbursement Act.

24

1 C. The Board of Regents of the Tulsa Community College shall be
2 a body corporate, and shall adopt and use an official seal. It
3 shall annually elect a chairperson, a ~~vice-chairperson~~ vice
4 chairperson, and a secretary, each of whom shall serve for a term of
5 one (1) fiscal year and until his or her successor is elected and
6 qualified, and who shall perform such duties as the Board directs,
7 and each of whom shall furnish a corporate surety bond payable to
8 ~~the State of Oklahoma~~ this state, in such amount as the Board may
9 prescribe, conditioned upon the faithful performance of his or her
10 duties. The Board shall adopt rules as it deems necessary for the
11 governing of the Board and the discharge of its duties, and shall
12 cause to be kept the minutes of all meetings and transactions
13 considered at each meeting, in a suitable book to be obtained and
14 kept for such purpose. The Board of Regents of the Tulsa Community
15 College shall be the governing Board of the community college and
16 shall have the supervision and management thereof and shall have the
17 same powers and duties as governing boards of other institutions in
18 The Oklahoma State System of Higher Education and may do all things
19 necessary or convenient to make the community college effective for
20 the functions and purposes for which it shall have been established.
21 Following the establishment of the Tulsa Community College by the
22 Oklahoma State Regents for Higher Education, the Board of Regents of
23 the college shall develop a comprehensive plan for implementing the
24 functions, purposes, and educational programs of the Tulsa Community

1 College as prescribed by the State Regents in the establishment of
2 the institution, which plan shall be submitted for review and
3 approval of ~~said~~ the State Regents.

4 D. The name change from Tulsa Junior College to Tulsa Community
5 College shall not affect in any manner whatsoever any legal
6 relationships, bonds, contracts, supervisory authority by the Board
7 of Regents, title to property, obligations, or any other phase or
8 aspect of the legal status of the institution for any purpose,
9 except that the institution shall be referred to as the "~~Tulsa~~ Tulsa
10 Community ~~College~~" College in all future references to the
11 institution and in all constitutional and statutory references
12 currently in law.

13 E. Beginning January 1, 2027, the Board of Regents shall not
14 have the authority to establish and maintain plans for tenure of
15 employees hired January 1, 2027, and thereafter. The contract of
16 any employee hired on January 1, 2027, and thereafter shall not
17 exceed five (5) years.

18 F. It is the intent of the Legislature that supplies, including
19 but not limited to letterheads, which on the effective date of this
20 section carry or are labeled with the name "~~Tulsa~~ Tulsa Junior
21 ~~College~~" College shall be utilized after the effective date of this
22 section until such supplies are depleted. Any new supplies ordered
23 for use after the effective date of this section shall bear the name
24 "~~Tulsa~~ Tulsa Community ~~College~~" College. For purposes of this

1 section, "supplies" shall not mean signs designating the name of the
2 college.

3 SECTION 10. AMENDATORY 70 O.S. 2021, Section 4418, is
4 amended to read as follows:

5 Section 4418. A. The Oklahoma State Regents for Higher
6 Education upon ~~said~~ finding of need and feasibility as provided in
7 Section 4417 of this title are directed to negotiate with the Board
8 of the now existing Altus Community College and make all appropriate
9 arrangements for the conversion of ~~this~~ the institution to a state
10 junior college, including the continued use of existing facilities,
11 faculty, and other resources for the period of time necessary to
12 achieve the conversion, and to maintain and operate the college
13 during the transition period. After the conversion has been fully
14 accomplished by the State Regents, a governing board composed of
15 seven (7) members to serve seven-year overlapping terms and to be
16 known as the Board of Regents of Western Oklahoma State College
17 shall be created to be appointed by the Governor by and with the
18 advice and consent of the Senate, ~~which board.~~ The Board shall have
19 the same powers and duties as the Board of Regents of Tulsa
20 Community College, ~~set out~~ provided for in Section 4413 of this
21 title. No more than four members of ~~Advisory~~ the Board shall be
22 residents of any one county involved.

23 B. Beginning January 1, 2027, the Board shall not have the
24 authority to establish and maintain plans for tenure of employees

1 hired January 1, 2027, and thereafter. The contract of any employee
2 hired on January 1, 2027, and thereafter shall not exceed five (5)
3 years.

4 SECTION 11. AMENDATORY 70 O.S. 2021, Section 4423, is
5 amended to read as follows:

6 Section 4423. A. The Oklahoma State Regents for Higher
7 Education are hereby authorized and directed to maintain two-year
8 colleges at El Reno, which shall be known as the Redlands Community
9 College, at Poteau, which shall be known as the Carl Albert State
10 College, at Seminole, which shall be known as the Seminole State
11 College, at Midwest City, which shall be known as the Rose State
12 College, and in South Oklahoma City, which shall be known as the
13 Oklahoma City Community College; and, each of ~~said~~ the colleges
14 shall be an integral and full-fledged part of The Oklahoma State
15 System of Higher Education.

16 B. Each of the colleges which at the time it became a member of
17 ~~the~~ The Oklahoma State System of Higher Education was operating a
18 technical area school district program to carry out the function of
19 postsecondary technical education for the people of the district
20 shall continue to do so as then operated and in accordance with
21 Section 4410 of this title, and all property acquired by virtue of
22 the technical area school district operation shall remain as
23 property of the technical area school district and be maintained in
24 the custody of the Board of Regents of the college acting as the

governing board of the technical area school district for use by the postsecondary area district program.

C. For each of the colleges ~~above named and identified~~ provided for in this section, there shall be created a separate Board of Regents, and ~~said~~ each Board of Regents shall consist of seven (7) members to serve seven-year overlapping terms, with members of ~~said~~ each Board to be appointed by the Governor, by and with the advice and consent of the ~~State~~ Senate. Each Board shall have the same powers and duties as the Board of Regents of Tulsa Community College. Four members of the Board of Regents for the colleges located at El Reno, Poteau, and Seminole shall be from the county in which ~~said~~ each college is located. Four members of the Board of Regents for Rose State College shall be residents of the original district of the college. Four members of the Board of Regents for Oklahoma City Community College shall be residents of South Oklahoma City. For purposes of this section, "South Oklahoma City" shall mean the original district of Oklahoma City Community College and the portion of Oklahoma City that lies in Cleveland County and is bounded on the west by County Line Road and on the east by Bryant Avenue.

D. With respect to Rose State College and Oklahoma City Community College, it is further provided that the college and its governing Board of Regents shall continue to operate the technical area school district program to carry out the function of

1 postsecondary technical education for the people of the technical
2 education school district as now operated, and in accordance with
3 Section 4410 of this title.

4 E. Beginning January 1, 2027, the Board of Regents for each of
5 the colleges authorized by the provisions of this section shall not
6 have the authority to establish and maintain plans for tenure of
7 employees hired January 1, 2027, and thereafter. The contract of
8 any employee hired on January 1, 2027, and thereafter shall not
9 exceed five (5) years.

10 SECTION 12. This act shall become effective November 1, 2026.

11 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
12 March 3, 2026 - DO PASS AS AMENDED
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